



Competition and Consumer Amendment (Abolition of Limited Merits Review) Act 2017

No. 116, 2017

An Act to amend the *Competition and Consumer Act 2010*, and for related purposes

Note: An electronic version of this Act is available on the Federal Register of Legislation
(<https://www.legislation.gov.au/>)

Contents

1	Short title	1
2	Commencement	2
3	Schedules	2
Schedule 1—Abolition of limited merits review		3
Part 1—Amendments		3
<i>Competition and Consumer Act 2010</i>		3
Part 2—Application and transitional		5



Competition and Consumer Amendment (Abolition of Limited Merits Review) Act 2017

No. 116, 2017

An Act to amend the *Competition and Consumer Act 2010*, and for related purposes

[Assented to 30 October 2017]

The Parliament of Australia enacts:

1 Short title

This Act is the *Competition and Consumer Amendment (Abolition of Limited Merits Review) Act 2017*.

No. 116, 2017 *Competition and Consumer Amendment (Abolition of Limited Merits Review) Act 2017* 1

2 Commencement

- (1) Each provision of this Act specified in column 1 of the table commences, or is taken to have commenced, in accordance with column 2 of the table. Any other statement in column 2 has effect according to its terms.

Commencement information		
Column 1	Column 2	Column 3
Provisions	Commencement	Date/Details
1. The whole of this Act	The day after this Act receives the Royal Assent.	31 October 2017

Note: This table relates only to the provisions of this Act as originally enacted. It will not be amended to deal with any later amendments of this Act.

- (2) Any information in column 3 of the table is not part of this Act. Information may be inserted in this column, or information in it may be edited, in any published version of this Act.

3 Schedules

Legislation that is specified in a Schedule to this Act is amended or repealed as set out in the applicable items in the Schedule concerned, and any other item in a Schedule to this Act has effect according to its terms.

Schedule 1—Abolition of limited merits review

Part 1—Amendments

Competition and Consumer Act 2010

1 Subsection 44AI(1)

Omit “A State/Territory energy law”, substitute “Subject to section 44AIA, a State/Territory energy law”.

2 After section 44AI

Insert:

44AIA No merits review of AER decisions

A decision of the AER under a State/Territory energy law or local energy instrument is not to be subject to merits review (however described) by a body established under a law of a State or Territory.

3 Subsection 44ZZM(1)

Omit “A State or Territory access regime law”, substitute “Subject to section 44ZZMAA, a State or Territory access regime law”.

4 After section 44ZZM

Insert:

44ZZMAA No merits review by Tribunal of decisions under energy laws

- (1) This section applies if a State/Territory energy law or the *Australian Energy Market Act 2004* purports to confer a function or power, or to impose a duty, in relation to a decision made under:
- (a) a State/Territory energy law; or
 - (b) a uniform energy law applied as a law of the Commonwealth under the *Australian Energy Market Act 2004*.

However, this section does not apply in relation to a decision relating to the disclosure of confidential or protected information under such a law.

- (2) The purported conferral or imposition has no effect to the extent to which it would require or permit merits review (however described) of the decision by the Tribunal.
- (3) This section applies despite anything in any law of the Commonwealth, a State or a Territory.

Part 2—Application and transitional

5 Application—insertion of section 44AIA

The amendment made by Part 1 of this Schedule to insert section 44AIA of the *Competition and Consumer Act 2010* applies in relation to a decision that is made before, on or after the commencement of this Schedule.

6 Application—insertion of section 44ZZMAA

- (1) The amendment made by Part 1 of this Schedule to insert section 44ZZMAA of the *Competition and Consumer Act 2010* applies in relation to a decision made before, on or after the commencement of this Schedule, subject to subitem (2).
- (2) The amendment does not apply in relation to a decision if an application for merits review of the decision by the Tribunal was made before 21 June 2017.
- (3) However, subitem (2) does not prevent the amendment applying in relation to a decision covered by subsection 44ZZMAA(1) of that Act (as inserted by this Act) if the decision is made on the remittal of a matter by the Tribunal.

Note: A matter may be remitted by the Tribunal following merits review by the Tribunal of such a decision if an application for merits review was made before 21 June 2017. Subitem (3) prevents an application for merits review by the Tribunal of the decision on the remitted matter.

*[Minister's second reading speech made in—
House of Representatives on 10 August 2017
Senate on 5 September 2017]*

(158/17)
